

Opinion of the Court

144–146, 170–171. In particular, the FEC thought that many of the persons who belonged to AIPAC lacked sufficient control of the organization's policies to qualify as “members” for purposes of the Act.

A few months later, however, the Court of Appeals over-turned the FEC's regulations defining “members,” in part because that court thought the regulations defined membership organizations too narrowly in light of an organization's “First Amendment right to communicate with its ‘members.’” *Chamber of Commerce v. Federal Election Comm'n*, 69 F. 3d 600, 605 (CA DC 1995). The FEC has subsequently issued proposed rules redefining “members.” Under these rules, it is quite possible that many of the persons who belong to AIPAC would be considered “members.” If so, the communications here at issue apparently would not count as the kind of “expenditures” that can turn an organization into a “political committee,” and AIPAC would fall outside the definition for that reason, rather than because of the “major purpose” test. 62 Fed. Reg. 66832 (1997) (proposed 11 CFR pts. 100 and 114).

The consequence for our consideration of Question Two now is that the FEC's new rules defining “membership organization” could significantly affect the interpretive issue presented by this question. If the Court of Appeals is right in saying that this Court's narrowing interpretation of “political committee” in *Buckley* reflected First Amendment concerns, 101 F. 3d, at 741, then whether the “membership communications” exception is interpreted broadly or narrowly could affect our evaluation of the Court of Appeals' claim that there is no constitutionally driven need to apply *Buckley*'s narrowing interpretation in this context. The scope of the “membership communications” exception could also affect our evaluation of the Solicitor General's related argument that First Amendment concerns (reflected in *Buckley*'s narrowing interpretation) are present whenever the Act requires disclosure. In any event, it is difficult to decide the